

recourse is therefore had to the corpus by sale or mortgage. But even if a definite time of payment be not an ingredient in the case, yet from the very nature of portions, as rents and profits without stint represent the whole estate, [*420] the Court assumes the *jurisdiction of ordering a sale or mortgage (*a*); and where there is no suit pending the trustees of an estate subject to such a charge may sell or mortgage, if they can find a purchaser or mortgagee, without the intervention of the Court (*b*).

5. **Out of annual rents only.** — If, however, the clear intention be that *annual* rents and profits only are meant, the Court cannot break in upon the corpus; and such is the case where the portions are directed to be raised *expressly* out of the *annual* rents (*c*); or where it is evident from the whole context that by rents and profits were intended the *annual* rents (*d*).

6. **Out of rents or otherwise, except a sale.** — In *Bennett v. Wyndham* (*e*), where the trust was to raise the charge out of the rents and profits, or by *such other ways and means* except a sale as the trustees should think proper, the Court on the one hand collected an intention that annual rents and profits were meant, and on the other hand that the tenants for life were not to be deprived of all usufructuary enjoyment, and the Court adopted a middle course by holding that part of the rents should be impounded and part be handed over to the tenants for life, and referred it to cham-

(*a*) *Warburton v. Warburton*, 2 Vern. 420; *Sheldon v. Dormer*, 2 Vern. 310; *Baines v. Dixon*, 1 Ves. sen. 41; *Hall v. Carter*, 2 Atk. 358, *per* Lord Hardwicke; *Backhouse v. Middleton*, 1 Ch. Ca. 173; *Green v. Belcher*, 1 Atk. 505; *Trafford v. Ashton*, 1 P. W. 415; *Countess of Shrewsbury v. Earl of Shrewsbury*, 1 Ves. jun. 234, *per Cur.*; *Okeden v. Okeden*, 1 Atk. 550; and see *Allan v. Backhouse*, 2 V. & B. 65; [*Re Barber's Settled Estates*, 18 Ch. D. 624:] *Bootle v. Blundell*, 1 Mer. 233 *Anon.* 1 Vern. 104, in which it was said that rents and profits could not receive

this enlarged construction in a deed; *Garmstone v. Gaunt*, 1 Coll. 577; *Lingon v. Foley*, 2 Ch. Ca. 205; *Mills v. Banks*, 3 P. W. 1.

(*b*) *Backhouse v. Middleton*, 1 Ch. Ca. 176, *per Cur.*

(*c*) *Anon.* 1 Vern. 104; *Solley v. Wood*, 29 Beav. 482.

(*d*) *Mills v. Banks*, 3 P. W. 1; *Wilson v. Halliley*, 1 R. & M. 590; *Ivy v. Gilbert*, 2 P. W. 13; *Evelyn v. Evelyn*, 2 P. W. 659, see 666; *Earl of Rivers v. Earl of Derby*, 2 Vern. 72; *Okeden v. Okeden*, 1 Atk. 550.

(*e*) 23 Beav. 521.